

Terms and conditions

Introduction

1. Welcome to the Mining Qualifications Authority **discretionary grant application** platform. The purpose of the platform is to allow employers in the mining sector and learners to interact for the purpose of accessing employment, learnership and apprenticeship opportunities
2. By accessing and using this platform, you, the user, agree to be bound by the terms and conditions that are set out in this notice. If you do not wish to be bound by these terms and conditions, then you may not access, display, use, download and/or otherwise copy or distribute any of the content of this platform.

Your use of the platform

3. You agree that your use of this platform is for lawful purposes only. You agree that you will not use this platform for any unlawful purpose, including but not limited to: the commission of a criminal offence; to gain unauthorized access to other computer systems; or for the transmission of unlawful material.

General disclaimer

4. You agree to access and use this platform entirely at your own risk. Please read the Exclusion of Liability clause in this notice.

Choice of law

5. This platform is owned and operated within the Republic of South Africa. Therefore, these terms and conditions are governed by the laws of the Republic of South Africa, and the user consents to the jurisdiction of the Witwatersrand High Court in the event of any dispute.

Information

6. While every effort is made to ensure that the information provided on the platform is current and accurate, you should not assume that the information on the platform is always current or accurate, and other sources of this information should be consulted before making any decision to act on the information displayed on this platform

Privacy

7. We respect the privacy of all visitors to this platform. You may use this platform without providing any personal information. However, so that we can continually assess the popularity of the platform and improve it for our visitors, we collect information on the number of visits to the site, pages viewed etc.

Copyright

8. Mining Qualifications Authority retains copyright in the platform and all current and future content that is displayed on the platform, which is not owned by third parties. In terms of a limited license,

granted for general use, Mining Qualifications Authority grants you, the user, subject to these terms and conditions, a non-exclusive, non-transferable, limited and revocable right to access, display, use, download and otherwise copy the current and future content of the platform for your personal, non-commercial and informational purposes only. The platform owner grants the user the permission to copy and distribute the information from the platform provided that it notifies the webmaster of such use and provided that the source of the information is acknowledged by reference to the source. The platform and content may not be reproduced, duplicated, copied, resold or otherwise exploited for any commercial purpose without the express, prior written consent of Mining Qualifications Authority.

Your comments

9. We value comments received from visitors to our platform. However, you agree not to transmit any material that is unlawful or harmful, defamatory, abusive, threatening, vulgar or obscene. You remain liable to any third party for your comments, and Mining Qualifications Authority is not liable to any third party regarding the content of your comments.

External links

10. This platform provides links to other websites. The fact that we have such links must not be construed as constituting any relationship or endorsement of the linked third party, and reliance on all information and content provided by the external link is done so at your own risk. No endorsement of products, services, or firms is intended, nor is criticism implied of those not mentioned. Third-party advertising and promotional material may be displayed on the site from time to time, and the display of such material should not be construed as Mining Qualifications Authority endorsing or creating any relationship between Mining Qualifications Authority and that third party. Reliance on any such promotional or advertising material is entirely at your own risk.

Linking

11. Any third party wishing to link the platform to their platform must obtain permission from Mining Qualifications Authority by directing such request to the webmaster, and permission may be granted on terms and conditions agreed.

Exclusion of liability

12. It is a term and condition of the use of this site that you expressly agree that the use of the site is entirely at your own risk. The platform and all content on the platform is provided on an "as is" basis and Mining Qualifications Authority makes no representations or warranties of any kind whether express or implied to the accuracy of the contents on the platform. Mining Qualifications Authority does not warrant that the functions provided by the site will be uninterrupted or error free, or that the site or the server is free from viruses or other harmful components.

13. Mining Qualifications Authority, its owners, directors, employees, officials, suppliers, agents and / or representatives shall not be liable for any loss or damage, whether direct, indirect or consequential, or any expense of any nature whatsoever, which may be suffered by you the user, which arises directly or indirectly upon reliance of the platform and / or its content.

14. Mining Qualifications Authority, its agents or suppliers shall not be responsible for any direct or indirect special consequential or other damage of any kind whatsoever suffered or incurred by you related to your use of, or your inability to access or use the content or the platform or any functionality of the platform or of any linked platform even where Mining Qualifications Authority is expressly advised thereof.

15. You will indemnify Mining Qualifications Authority, its owners, directors, employees, officials, agents, suppliers or representatives and keep them fully indemnified, from and against any loss or damage suffered or liability incurred in respect of any third party, which arises from your use of this platform. Contact details for any purposes related to these terms and conditions.

16. The MQA has in place reasonable commercial standards of technology and operational security to protect all information provided by users from loss, misuse, alteration or destruction. All reasonable steps will be taken to secure a user's information. Authorised employees, who are responsible for the maintenance of any sensitive data submitted, are required to maintain the confidentiality of such data.

It is expressly prohibited for any person, business or entity to gain or attempt to gain unauthorised access to any page on this website, or to deliver or attempt to deliver any unauthorised, damaging or malicious code to this website. If a person delivers or attempts to deliver any unauthorised, damaging or malicious code to this website or attempts to gain unauthorised access to any page on this website, a criminal charge will be laid against that person, and, if the MQA or any public body should suffer any damage or loss, civil damages will be claimed.

17. The MQA may use cookies (small text files stored in a user's browser) or web beacons (electronic images that allow this website to count users who have accessed a particular page and to access certain cookies) to ensure that the website is well managed and to facilitate improvement of the site. The MQA or its service-provider(s) may use cookies to collect aggregate data. The MQA may use such devices from time to time to track information on its systems and identify categories of users by items such as IP addresses, domains, browser types and pages visited. The web administrator uses the information to analyse the number of users of different areas of the site and to ensure that this site is serving as a useful and effective information source.

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Legal Notice

Information classified

This refers to information the disclosure of which, may cause financial prejudice to Mining Qualifications Authority, expose Mining Qualifications Authority to legal risks or damage Mining Qualifications Authority's reputation. Such information pertains to confidential Information which is critical Mining Qualifications Authority's business operations.

Examples of Information classified as Confidential include, but is not limited to: marketing information, clients and suppliers of Mining Qualifications Authority, personnel & payroll files, and internal information which is for exclusive internal use and which, if lost, corrupted or disclosure without proper authorisation would result in business, financial or other loss. Before such internal information may be disclosed or distributed to third parties, written authorisation or approval from the information owner must be obtained restricted for use within the company.

Exclusions

The said information excludes information which is in the public domain, such as but not limited to annual reports, press statements, corporate, public relations and marketing materials disclosed by Mining Qualifications Authority's authorised individuals.

Hyper links are Not Endorsements

Links from Mining Qualifications Authority's platform to other platforms if any, or references to services or publications other than those of Mining Qualifications Authority do not imply the endorsement or approval of such platforms, services or publications by Mining Qualifications Authority.

PAIA Manual

Promotion of Access to Information

Manual in terms of The Promotion of Access to Information Act of 2000

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